

NAPCS Unionization Research — State — Charter Sector Overview

South Carolina — NLRB R11 Jurisdiction — June 6, 2026 [RESEARCH DEFERRED]

NAPCS Unionization Research • June 6, 2026 • Template v8.0 • TIER 2D — RESEARCH DEFERRED

Section 1: State Overview

State	South Carolina
Labor Board	NLRB R11 — National Labor Relations Board, Region 11 (Winston-Salem)
Governing Law	S.C. Code Ann. §59-40 (Charter School Act). Charter schools are independent employers. NLRB R11 private employer framework applies.
Federal NLRB Jurisdiction	YES — All SC charter schools are independently operated nonprofits — NLRB R11 jurisdiction.
Right-to-Work	Right-to-Work State — S.C. Code Ann. §41-7-10 through §41-7-90
For-Profit Operator Status	For-profit EMO management contracts permitted under state law
Card-Check Available	NO — RTW state; no card-check statute.
Research Status	DEFERRED — Executive Sponsor direction, June 7, 2026 (PDR-018). Sector assumed unorganized. No school-level research conducted.

Section 2: Charter Sector Landscape

Research deferred — Executive Sponsor direction (PDR-018, June 7, 2026). Sector assumed unorganized. Charter universe and enrollment figures are sourced from Charter School Registry v133 and NCES ELSI 2024–25. No school-level research has been conducted.

Category	Schools	% of Total	Notes
No Organizing Activity Documented	104	100%	Research deferred — Executive Sponsor direction (PDR-018, June 7, 2026). Sector assumed unorganized.
Total Charter Schools in South Carolina	104	100%	Source: Charter School Registry v133 (NCES ELSI 2024–25).

Charter Sector Enrollment

Total Charter Enrollment	61,956 students — 7.8% of state K–12 enrollment (796,780 total K–12 students)
Students in CMO/EMO-Affiliated Charter Schools	N/A — research deferred; sector assumed unorganized
Students in Organized Charter Schools	N/A — research deferred; sector assumed unorganized
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

CMO / EMO Name	Type	State	National	Organized	Total Enrollment
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		Campuses	Campuses †	in State	
GREEN Charter Schools	Network‡	6	—	—	2,726
SC Virtual / Connections Academy	Network‡	2	—	—	8,332
Movement School	Network‡	1	—	—	79
TOTAL — All CMO/EMO Schools in South Carolina		9		0 organized schools in network-affiliated charters	

† National Campuses reflects total campuses operated by this network across all states, as reported in Charter School Registry v133. Provides context for networks operating in multiple states.

‡ Network (type unclassified) = operator present in Charter School Registry v133 but not yet classified in CMO Reference data. Contact registry project to add classification for these records.

3 network (type unclassified). Approximately 95 schools operate independently with no CMO/EMO affiliation. Source: Charter School Registry v133.

Section 4: Legal Framework & Sector Overview

Findings are based on research as of June 6, 2026.

1: Legal & Jurisdictional Framework

S.C. Code Ann. §59-40 (Charter School Act). Charter schools are independent employers. NLRB R11 private employer framework applies. South Carolina is a right-to-work state (S.C. Code Ann. §41-7-10 through §41-7-90). Charter schools in South Carolina are subject to NLRB jurisdiction as private employers (NLRB R11). Secret ballot NLRB election is the required organizing pathway. Card-check is not available.

2: Charter Sector Structure

South Carolina operates 104 open-enrollment charter schools, enrolling approximately 61,956 students. 3 charter management organizations and education management organizations operate in South Carolina. The largest networks by campus count are GREEN Charter Schools (6 campuses in state), SC Virtual / Connections Academy (2 campuses in state), Movement School (1 campuses in state). Approximately 95 schools operate independently with no CMO or EMO affiliation. Network-level detail, including campus counts and total enrollment, appears in Section 3 above. No school-level union research has been conducted. Research deferred — Executive Sponsor direction (PDR-018, June 7, 2026).

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

No press coverage of charter school employee organizing has been identified in South Carolina. Coverage focuses on school accountability and sector growth.

Legislative Context

No charter-sector collective bargaining legislation has been introduced in the South Carolina General Assembly. South Carolina charter law (S.C. Code Ann. §59-40) does not address employee collective bargaining.

Section 6: Contract & CBA Access Registry

No collective bargaining agreements documented for this state. Research deferred — sector assumed unorganized (PDR-018, June 7, 2026).

